

LIABILITY WAIVER, INFORMED CONSENT & CLIENT AGREEMENT

PARTICIPANT INFORMATION

Child's Name: _____

Date of Birth: _____

Parent/Guardian Name: _____

Phone: _____

Email: _____

Additional Parent/Guardian Name: _____

Phone: _____

Email: _____

Emergency Contact (if different):

Name: _____ Phone: _____

ACKNOWLEDGMENT OF RISKS

I understand that my child's participation involves inherent risks, including but not limited to:

- Muscle strains, sprains, ligament/tendon tears, fractures, and dislocations
- Joint injuries (knees, ankles, shoulders, hips), including growth-plate injuries in youth athletes

- Slips, falls, contact or collision with other participants, coaches, spectators, fixed objects, or equipment
- Equipment misuse, breakage, or failure (including goals, weights, bands, balls, nets, turf/track surfaces, etc.)
- Heat-related illness, dehydration, asthma/respiratory distress, cardiac events, and other exertion-related medical conditions
- Concussion or other head/brain injury; spinal injury; serious injury, permanent disability, paralysis, or death
- Overuse or repetitive-stress injuries (for example, tendinitis, stress fractures) and delayed-onset symptoms
- Environmental and outdoor risks (weather changes, sun exposure, poor air quality, uneven or wet surfaces, insects/animals)
- Exposure to communicable illnesses associated with group activities
- Risks arising from third-party/rented locations and other users of the premises (including surface conditions and shared spaces outside the Company's control)

I understand that the risks of participation may be increased by factors such as my child's health, physical condition, effort level, failure to follow instructions, the actions of others, and conditions at third-party facilities.

Parent/Guardian Initials: _____

ASSUMPTION OF RISK & PERMISSION

I give permission for my child to participate and I knowingly assume all inherent risks associated with sports training and related activities, whether arising from my child's own actions, the actions of other participants or third parties, the use of equipment, environmental conditions, or conditions at third-party/rented facilities, to the fullest extent permitted by applicable law (including New York law, if applicable). I understand that injuries may occur even when safety rules are followed. If my child is injured, feels unwell, experiences concussion-like symptoms, or believes any activity or condition is unsafe, my child will stop participation and notify a coach immediately.

Parent/Guardian Initials: _____

PARTICIPANT RESPONSIBILITIES

I agree that my child (and I, as parent/guardian) will:

- Follow all coaching instructions, posted facility rules, and safety rules (including warm-up, hydration, and return-to-play directions)
- Use equipment only as instructed and only for its intended purpose; do not use damaged equipment and report it to a coach
- Immediately report injuries, pain, dizziness, concussion-like symptoms, breathing difficulty, or any unsafe condition; stop participation when told or when symptoms arise
- Treat coaches, staff, and other participants respectfully; no bullying, harassment, fighting, threats, or inappropriate language
- Arrive on time and be picked up on time; understand the Company may not provide supervision outside scheduled session times
- Wear appropriate athletic clothing/footwear and use any required protective gear (if applicable)
- Bring water and take reasonable hydration/rest breaks as directed; do not participate while ill in a way that may endanger others

I understand failure to comply may result in removal from participation.

Parent/Guardian Initials: _____

HEALTH & MEDICAL CERTIFICATION

Known medical conditions (including asthma, diabetes, seizure disorder, heart conditions, etc.): _____

Allergies (food/medication/latex/insect stings) and reaction details:

Current medications (name/dose/timing) and any emergency medication carried (inhaler/EpiPen, etc.): _____

Preferred hospital (if any): _____

I certify that my child is in appropriate physical condition to participate in training activities. I understand it is my responsibility to obtain medical clearance if my child has any condition that could affect safe participation, and I represent that my child has been cleared by a licensed medical professional if needed. I agree to promptly update the Company in writing if any medical information, medications, allergies, restrictions, or emergency contacts change.

Parent/Guardian Initials: _____

EMERGENCY MEDICAL AUTHORIZATION

If I cannot be reached promptly in an emergency, I authorize the Company, its coaches, and staff to contact emergency services (911), and to obtain or authorize emergency evaluation, first aid, transportation (including ambulance), and medical or dental treatment for my child as deemed necessary by medical professionals. I authorize the release of relevant information (including this form and the medical information provided above) to emergency responders and medical providers for treatment purposes. I understand the Company does not provide health insurance coverage, and I accept full financial responsibility for all medical expenses incurred.

The Company will attempt to contact a parent/guardian and the emergency contact as soon as reasonably practicable. Non-emergency treatment will not be authorized without my consent when I can be reached in time to make decisions.

If my child requires an inhaler, EpiPen, or other emergency medication, I am responsible for ensuring it is available at sessions and for informing the coach of where it will be kept and when it may be used.

Parent/Guardian Initials: _____

RELEASE / LIMITATION OF LIABILITY (NEW YORK)

In consideration of being allowed to participate in the program, I (on behalf of myself and my child) agree as follows, to the fullest extent allowed by applicable law: **(1)** I will not make a claim against, sue, or seek to hold liable the Company and its owners, officers, employees, contractors/coaches, volunteers, agents, and any facility owners/operators where training occurs (collectively, the “Releasees”) for **ordinary negligence** arising out of the **inherent risks** of sports training and related activities; **(2)** I understand that **New York General Obligations Law § 5-326** may render some liability releases **void and unenforceable** when a fee is paid for use of certain recreational facilities; therefore, this agreement is intended primarily as an **assumption-of-risk and informed-consent** acknowledgment and shall be enforced only to the extent permitted by New York law; and **(3)** Nothing in this agreement releases or limits liability for **gross negligence, reckless or intentional misconduct**, or any other liability that cannot be waived under law.

I acknowledge that some injuries may be caused by the actions or inactions of other participants or third parties, or by conditions at a facility not controlled by the Company. I agree to follow all safety rules and to promptly notify a coach of any unsafe condition.

THIRD-PARTY FACILITIES / RENTED LOCATIONS

I understand that training sessions may be held at facilities owned or operated by third parties (for example, schools, parks, gyms, or rented fields). The Company does not own or control these locations and may have limited ability to inspect, repair, or modify the premises. I agree that my child will follow all posted and communicated facility rules and staff directions. I understand the facility owner/operator may require a separate waiver or agreement, and signing this document does not replace any facility-required documents.

To the fullest extent permitted by law, I assume the risks associated with the condition of any third-party premises (including surface conditions, weather-related hazards, and the presence or actions of other users of the premises) that may be outside the Company’s control.

Parent/Guardian Initials: _____

PHOTO & MEDIA RELEASE

I grant permission for the Company (and those acting with its permission) to photograph, audio record, and/or video record my child during activities, and to use my child’s

image/likeness for the Company's promotional and informational purposes (including social media, website, and print materials). I understand my child's name will not be used unless I provide separate written permission. I understand there is no compensation for such use, and I waive any right to inspect or approve the finished materials. I may revoke this consent in writing for future uses; revocation will not affect materials already created or published.

Parent/Guardian Initials: _____

PICKUP AUTHORIZATION

Authorized Individuals:

1. ---

2. ---

3. ---

I understand my child will only be released to authorized individuals.

Parent/Guardian Initials: _____

PAYMENT & ATTENDANCE POLICY

Refunds: All fees are due in advance, and fees are **non-refundable** once a session/package/program is purchased.

Participant cancellations / no-shows: If the participant does not attend a scheduled session (including late arrival that prevents meaningful participation), the session will be treated as used and **no refund** will be provided.

Cancellations: If the session cancels due to weather, unsafe conditions, third-party facility closure/unavailability, or other circumstances outside the Company's reasonable control, you will receive a make-up session. Any cancellations will be communicated via email.

Parent/Guardian Initials: _____

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ACKNOWLEDGMENT & SIGNATURE

I have read and fully understand this agreement. I sign it voluntarily on behalf of my child.

Parent/Guardian Name: _____

Parent/Guardian Signature: _____

Date: _____